

REVISED
ITEM NO.3 **IN COURT NO.2** **SECTION PIL-W**
S U P R E M E C O U R T O F I N D I A
RECORD OF PROCEEDINGS

Writ Petition (Civil) No.728/2015

ARJUN GOPAL & ORS.

Petitioner(s)

VERSUS

UNION OF INDIA . & ORS.

Respondent(s)

(I.A. NOS.46203 and 46212 of 2019 (appln.(s) for impleadment as party respondent and seeking modification of the directions in the order dated 23.10.2018) and IA 119396/2017 - CLARIFICATION/DIRECTION, IA 178876/2018 - INTERVENTION/IMPLEADMENT, IA 178878/2018 - APPROPRIATE ORDERS/DIRECTIONS, IA 179036/2018 - INTERVENTION/ IMPLEADMENT, IA 179145/2018 - INTERVENTION/IMPLEADMENT, IA 179554/2018 - INTERVENTION/IMPLEADMENT, IA 4/2019 - INTERVENTION/IMPLEADMENT, IA 10915/2019 - INTERVENTION/IMPLEADMENT AND IA 13877/2019 - EXEMPTION FROM FILING O.T.)

**WITH W.P.(C) No. 891/2016 (PIL-W), W.P.(C) No. 895/2016 (PIL-W)
W.P.(C) No. 899/2016 (PIL-W), W.P.(C) No. 213/2017 (PIL-W)**

**Date : 11-04-2019 These matters were called on for hearing today.
CORAM :**

HON'BLE MR. JUSTICE S.A. BOBDE

HON'BLE MR. JUSTICE MOHAN M. SHANTANAGOUDAR

HON'BLE MS. JUSTICE INDIRA BANERJEE

Counsel for the parties

**Mr. Gopal Sankaranarayanan, Adv.
Ms. Pooja Dhar, AOR
Mr. Amit Bhandari, Adv.
Ms. Gayatri V., Adv.
Ms. Aishwarya Kane, Adv.**

**Mr. ANS Nadkarni, Ld. ASG
Mr. Ajit Kumar Sinha, Sr. Adv.
Ms. Archana Pathak Dave, Adv.
Mr. Satyalipsu Ray, Adv.
Mr. B. V. Balaram Das, AOR
Mr. Gurmeet Singh Makker, AOR**

**Mr. Raghvendra Singh, AG (UP)
Ms. Charu Singhal, Adv.
Ms. Swarupama Chaturvedi, AOR**

Petitioner-in-person

Mr. Abhishek Agarwal, AOR

**Mr. Anubhav Kumar, Adv.
Mr. Ankit Agarwal, Adv.
For M/s Manoj Swarup And Co., AOR**

Signature Not Verified
Digitally signed by
SANJAY KUMAR
Date: 2019.04.30
16:29:33 IST
Reason: 

Ms. Astha Sharma, AOR

M/s Corporate Law Group, AOR

Mr. B. Krishna Prasad, AOR

Mrs. Sarla Chandra, AOR

Mr. Vijay Panjwani, AOR

Ms. Charu Wali Khanna, Adv.

Mr. Chirag M. Shroff, AOR

Mr. Rajiv Dutta, Sr. Adv.

Mr. M. A. Chinnasamy, AOR

Ms. C. Rubavathi, Adv.

Mr. V. Senthil Kumar, Adv.

Mr. P. Raja Ram, Adv.

Mr. K. Ethiraj, Adv.

Mr. Rajul Shrivastav, Adv.

Mr. Chirag M. Shroff, AOR

Ms. Neha Sangwan, Adv.

Mr. Bijender Singh, Adv.

Mr. Hitesh Kumar Sharma, Adv.

Mr. S.K. Rajora, Adv.

Ms. Rohini Musa, AOR

Mr. Nishant R. Katneshwarkar, AOR

Mr. Anoop Kandari, Adv.

Mrs. V. D. Khanna, AOR

Mr. Anish R. Shah, AOR

Mr. Sachin Mittal, Adv.

Mr. Abhimanyu Bhandari, Adv.

Mr. Devesh Tripathi, Adv.

Ms. Roohina Dua, Adv.

Mr. Mukeshwsar N. Dubey, Adv.

Mr. Yoginder Handoo, AOR

Applicant-in-person, AOR

Ms. Garima Bajaj, AOR

Mr. Ashok Kumar Gupta II, AOR

Mr. Suvidutt M.S., AOR

Mr. Mohinder Jit Singh, AOR

Mr. S. K. Verma, AOR

Mr. Yugandhara Pawar Jha, AOR

Mrs. Anil Katiyar, AOR

Mr. Praveen Swarup, AOR

Mr. Ajay Bansal, AAG

Mr. Praveen Swarup, AOR

Mr. Gaurav Yadava, Adv.

Mr. Ajay Kumar Giri, Adv.

Mr. Anil Grover, AAG

Ms. Noopur Singhal, Adv.

Mr. Satish Kumar, Adv.

Mr. Sanjay Kumar Visen, AOR

Ms. Uttara Babbar, AOR

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Mr. Sanjay Kumar Tyagi, AOR

Mr. Basant R., Sr. Adv.

Ms. Liz Mathew, Adv.

Mr. A. Karthik, Adv.

Ms. Kiran Bhardwaj, AOR

Mr. K.N. Balgopal, Sr. Adv.

Mr. G. Prakash, AOR

Mr. Jishnu M.L., Adv.

Mrs. Priyanka Prakash, Adv.

Mrs. Beena Prakash, Adv.

Ms. Vandana Sehgal, AOR

Mr. Chandan Kumar, AOR

Mr. Gaurang Kanth, Adv.

Ms. Kamakshi Sehgal, Adv.

Mr. M. Yogesh Kanna, AOR

Mr. S. Partha Sarathi, Adv.

Mr. S. Raja Rajeshwaran, Adv.

Mr. Aswathi M.K., AOR
 Mr. Arvind Kumar, AOR
 Mr. Ashiesh Kumar, AOR
 Mr. Dhruv Pall, AOR
 Mr. Avijit Roy, AOR
 Mr. Jayesh Gaurav, Adv.
 Ms. Diksho Ojha, Adv.
 Mr. Farrukh Rasheed, AOR
 Mr. Fuzail Ahmad Ayyubi, AOR
 Mr. Jayesh K. Unnikrishnan, AOR
 Mr. Vijay Pratap Singh, Adv.
 Mr. Aviral Kashyap, Adv.
 Mr. Mirnal Kanthi Mondal, Adv.
 Mr. K.V. Jagdishvaran, Adv.
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 Mr. Jogy Scaria, AOR
 Ms. Beena Victor, Adv.
 Mr. K. Enatoli Sema, AOR
 Mr. Amit Kumar Singh, Adv.
 Mr. K.V. Muthu Kumar, AOR
 Mr. G.M. Kawoosa, Adv.
 Mr. M. Shueb Alam, AOR
 Ms. Madhumita Bhattacharjee, AOR
 Ms. Srija Choudhury, Adv.
 Mr. Sandeep, Adv.
 Mr. Jai Dehadrai, Adv.
 Mr. S.S. Rebello, Adv.
 Mr. Prashant Vaxish, Adv.
 Ms. Manisha Ambwani, AOR
 Mr. Nikhil Nayyar, AOR
 Mr. P.V. Yogeswaran, AOR
 Mr. Ashish Kumar Upadhyay, Adv.

Mr. Y. Lokesh, Adv.
Mr. Babul Kumar, Adv.

Ms. Ruchi Kohli, Adv.
Ms. Srishti Mishra, Adv.
Mr. Raj Bahadur, AOR

Mr. Pradeep Misra, AOR
Mr. Manoj Sharma, Adv.
Mr. Daleep Dhyani, Adv.

Mr. Rahul Joshi, AOR

Mr. Ranjan Mukherjee, AOR
Ms. Aprajita Mukherjee, Adv.

Ms. Aparna Rohatgi Jain, Adv.
Mr. Mahesh Kasana, Adv.
Mr. S.K. Dhingra, AOR

Mr. S.N. Bhat, AOR

Mr. Shishir Deshpande, AOR
Mr. Amit Yadav, Adv.
Mr. Kaushal Narayan Mishra, Adv.

Mr. Shuvodeep Roy, AOR
Mr. Kabir Shankar Bose, Adv.
Mr. Rijuk Sarkar, Adv.

Mr. Ranjan Mukherjee, AOR
Mr. Upendra Mishra, Adv.

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Mr. Sanjay Kumar, Adv.

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Mr. Tayenjam Momo Singh, AOR

Ms. Usha Nandini V., AOR

Mr. V.G. Pragasam, AOR
Mr. Prabhu Ramasubramanian, Adv.
Mr. S. Manuraj, Adv.

Mr. Deepak Jain, Adv.
Ms. Jaspreet Aulakh, Adv.
Mr. Tanpreet Gulati, Adv.
Ms. Twisha Issar, Adv.
Mr. Ayush Acharjee, Adv.
Ms. Shaila Arora, Adv.
Mr. Vaibhav Manu Srivastava, AOR

Mr. C.S. Vaidyanathan, Sr. Adv.

Mr. Balaji Srinivasan, AAG
 Mr. Vinodh Kanna B., AOR
 Ms. Pallavi Sengupta, Adv.
 Ms. S. Valarmathi, Adv.

Mr. Mukesh Verma, Adv.
 Mr. Yash Pal Dhingra, AOR

Mr. Anubhav Kumar, Adv.
 Ms. Ankita Agarwal, Adv.

Mr. Leishangthem Roshmani Kh., AOR
 Ms. Anupama Ngangom, Adv.
 Ms. Naibam Babina, Adv.

UPON hearing the counsel the Court made the following
 O R D E R

We have heard learned counsel appearing for the petitioner, the Tamil Nadu Fireworks and Amorcees Manufacturers' Association, the Union of India and other parties and perused the record. We have also heard Dr. Sadhana Rayalu, Chief Scientist & Head, Environment Materials Division, CSIR - National Environment Engineering Research Institute, Nagpur.

There is a prayer made on behalf of the fireworks manufacturers to permit manufacture of fireworks with Barium substitute i.e. Barium Nitrate. This is said to reduce the pollution to the extent of about 25 to 30 per cent. We are not inclined to allow this at this stage because it appears that the matter is still under consideration of the Petroleum and Explosive Safety organization (PESO) which has agreed to look into the best formulation that may be permissible for manufacture of firecrackers.

Learned counsel appearing for the PESO on the basis of the affidavit of the minutes of meeting dated 27.02.2019 wherein the PESO has agreed to grant approval for new formulation fireworks by 30th April, 2019. We consider it appropriate to direct the

PESO to do so by that date.

Order accordingly.

Upon such approval of new formulation fireworks, the PESO shall submit the said approval to the Union of India and the fireworks manufacturers may start to manufacture firecrackers in accordance with the new formulation and after due permission from the concerned authorities. Any licensed manufacturer may apply for requisite approval in accordance with the relevant rules and orders. This order shall be subject to such orders after the PESO has granted the approval. The Ministry of Environment, Forest and Climate Change (MoEF&CC) may file a report before this Court in the month of July, 2019. These orders shall operate till such further orders that may be passed and shall not be construed to creating any equity in favour of anybody else.

List the matter in the month of August, 2019.

I.A. No.46203/2019 and I.A. No.46212/2019

Interlocutory application being I.A. No.46203/2019 for impleadment as party respondents is allowed.

I.A. No.46212/2019 is an application filed on behalf of the two applicants - temples viz., Thiruvambady Devaswom and Paramekkavu Devaswom in the State of Kerala.

According to Mr. R. Basant, learned Senior Counsel appearing for the applicants, these temples have been celebrating the 'Thrissur Pooram' festival since 1798. This festival falls between 7th May and 14th May, 2019.

It appears that displaying of fireworks has been an integral part of the celebration of this festival. Hence, we see no reason

why the festivity should be suspended. It appears that the applicants-temples get the fireworks manufactured through their own licencees. They may do so subject to the written approval to be granted by the PESO recording the new formulation that can be used in the firecrackers. However, they shall ensure that barium is not used in the fireworks.

The applicants-temples must take care that the fireworks manufactured for the festivity are used and retained by them and do not find their way into the market. The PESO shall grant the approval within a period of three days from the date on which the applicants-temples move an application to it. The fireworks will be displayed according to the usual customs of the applicants-temples.

With the aforesaid directions, the interlocutory application being I.A. No.46212/2019 stands disposed of.

(SANJAY KUMAR-II)
COURT MASTER (SH)

(INDU KUMARI POKHRIYAL)
ASSISTANT REGISTRAR

Respondent (s)

Ms. Astha Sharma, AOR

M/s Corporate Law Group, AOR

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